



File No.: EXP202318875

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on October 26, 2023. The complaint is directed against EDITAURI S.L. with NIF B56570039 (hereinafter, EDITAURI). The reasons for the complaint are as follows:

The complainant states that the online electronic publishing store <https://edicionesauri.com/> lacks a privacy policy, even though it has forms for collecting personal data.

Along with the notification, a PDF document with 12 screenshots of the website <https://edicionesauri.com/> is provided.

SECOND: On December 27, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

The preliminary investigative actions of the Inspection have been able to ascertain the following points: That the company owning the website <https://edicionesauri.com/> is EDITAURI S.L., with NIF B56570039 and address at ***ADDRESS.1.

Date of Incorporation: 10/24/2023 Activity: 5811 - Book publishing. Status: Active.

That B.B.B., with NIF: ***NIF.1 and address at ***ADDRESS.1, is the sole administrator of EDITAURI S.L., as well as the holder of the phone line number ***PHONE.1, which appears as one of the contact numbers on the site <https://edicionesauri.com/>.

The other contact phone number that appears on the website is ***PHONE.2, which belongs to the company Yorespondo Telesecretariado S.L. with CIF ***NIF.2 and website <https://www.yorespondo.com/> that offers telephone assistance services for clients.

By means of a diligence dated 02/22/2024, screenshots of the content of the website <https://edicionesauri.com/> were incorporated into the file, which includes privacy information for the purchase of books online. In the section of the website "Submission of Manuscripts," there is a mandatory checkbox to accept the terms and conditions of the "Data Protection Law," without actually specifying the information required by data protection regulations.

The report of the preliminary investigative actions concludes that the information provided on the website subject to the complaint does not comply with the stipulations in Article 13 of the GDPR.

FOURTH: On 05/16/2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified on 05/16/2024, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations had elapsed, it has been verified that no allegations have been received from the complained party. Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not made allegations against the initiation

agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution. In view of all the actions taken, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: That the company owning the website <https://edicionesauri.com/> is EDITAURI S.L., with NIF B56570039 and address at ***ADDRESS.1.

SECOND: EDITAURI collects personal data from interested parties in various sections of its website <https://edicionesauri.com/>; specifically, through the

3/9

email address contact@edicionesauri.com provided for inquiries;

EDITAURI also collects, through the "contact form" and in the sections "send your manuscript" and "complete purchase," the first and last names of the interested parties, their email address, phone number, credit and/or debit card details.

THIRD: On the website <https://edicionesauri.com/> there is no section on privacy policy and the vast majority of the information required by Article 13 of the GDPR is missing when the data controller requests data directly from the interested party, with the sole exception of the purpose of the processing.

LEGAL GROUNDS

I

Jurisdiction

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

Transparency in the processing of personal data

The processing of personal data must be governed by the principles outlined in Article 5 of the GDPR, which states: "Personal data shall be: a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'); (...)"

The principle of transparency is primarily regulated in Articles 12 to 14 of the GDPR. In this regard, Article 12 of the GDPR establishes that "1. The data controller shall take appropriate measures to provide the data subject with all the information referred to in Articles 13 and 14" and contains various rules regarding the "form" in which the mandatory information must and can be provided.

The content of the information regarding the processing of personal data that must be provided to the data subject is regulated in the GDPR in Articles 13 and 14, which distinguish two scenarios: that the data is collected from the data subject (Article 13 GDPR) or obtained from another source (Article 14 GDPR).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/9

Article 13 "Information to be provided when personal data is obtained from the data subject" of the GDPR states: "

1. When personal data relating to a data subject is obtained from the data subject, the data controller

shall, at the time of obtaining the data, provide the data subject with all the information indicated below:

- a) The identity and contact details of the controller and, where applicable, of the controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of them or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when personal data are obtained, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of their processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/9

- e) if the communication of personal data is a legal or contractual requirement, or a necessary requirement for entering into a contract, and if the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic applied, as well as the importance and the expected consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, they shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

In this regard, Recital 60 of the GDPR states that "The principles of lawful and transparent processing require that the data subject be informed of the existence of the processing operation and its purposes. The data controller must provide the data subject with any supplementary information necessary to ensure lawful and transparent processing, taking into account the specific circumstances and context in which the personal data are processed. The data subject must also be informed of the existence of profiling and the consequences of such profiling. If the personal data are obtained from the data subjects, they must also be informed whether they are obliged to provide the data and of the consequences of not providing them."

In light of the documentation in the administrative file, EDITAURI collects various personal data on its website <https://edicionesauri.com/>, through the use of its email for inquiries contact@edicionesauri.com, and in the sections "Send your manuscript," "complete purchase," and

“contact form” it collects the name and surname of the data subjects, phone number, postal and email address, as well as credit and/or debit card information.

Although EDITAURI provides some information about data protection on its website (use of cookies, purpose of processing), there is no specific privacy policy section, and the vast majority of the information required by Article 13 of the GDPR is missing when the controller collects data directly from the data subject.

Article 13.1 a) of the GDPR requires that information be provided about the identity and contact details of the controller and, where applicable, of their representative. The checks carried out by the AEPD would confirm, as indicated by the complainant, that the identity of the data controller does not appear, the determination of which has even required prior actions by the AEPD’s Data Inspection; EDITAURI omits the vast majority of the information required in Article 13 of the GDPR when the data is collected from the data subject and thus fails to fulfill its duty as the data controller to adequately inform the data subjects.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
6/9

For the reasons stated above, the information provided on the website subject to the complaint does not comply with the provisions of Article 13 of the GDPR.

III

Classification of the infringement of Article 13 of the GDPR

The aforementioned infringement of Article 13 of the GDPR constitutes the commission of the infringement classified in Article 83.5.b) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) (...) b) The rights of data subjects under Articles 12 to 22;”

For the mere purposes of prescription, Article 72.1 of the LOPDGDD - Infringements considered very serious - provides the following:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and shall prescribe after three years, particularly the following:”

Article 72.1, in its section h), of the LOPDGDD qualifies as very serious “The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.”

IV

Proposal for sanction for the infringement of Article 13 of the GDPR

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the power to order the controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specific manner and within a specified timeframe - Article 58.2 d).

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine. In this case, it is considered that the sanction to be imposed is an administrative fine.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR in its section a) are relevant for this case:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). When deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damage and harm they have suffered; (...)
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 13 of the GDPR classified in Article 83.5 of the GDPR. The sanction to be imposed is an administrative fine in the amount of €600.00 (six hundred euros).

V

Adoption of Measures

Once the infringement has been confirmed, it is agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

where each supervisory authority may “order the controller or processor of the data to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In light of the facts described, EDITAURI is required to update, within one month from the date this resolution becomes final and enforceable, its website <https://edicionesauri.com/>, incorporating all the information required by Article 13 of the GDPR for the collection of data from the data subject.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on EDITAURI S.L., with NIF B56570039, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of six hundred euros (600 euros).

SECOND: TO ORDER EDITAURI S.L., with NIF B56570039, that pursuant to Article 58.2.d) of the GDPR, within 1 month from the date this resolution becomes final and enforceable, to prove that it has incorporated into its website <https://edicionesauri.com/>, all the information required by Article 13 of the GDPR for the collection of data from the data subject.

THIRD: TO NOTIFY this resolution to EDITAURI S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that it must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/9

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGGDD, and in accordance with the provisions of Article 123 of the LPACAP, interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es